



Supreme Court Chronicle



Issue XII | October 2024

Highlights

- *Conference on International Arbitration and the Rule of Law*
- *12th Fall special screening*
- *National Annual Stakeholders Consultation on Protecting the Rights of Children Living with Disability and Intersectionality of Disabilities*



75 years of the establishment of the Supreme Court of India
and
125th anniversary of the Permanent Court of Arbitration

Conference on
International Arbitration and the Rule of Law

13 – 15 September 2024





Dear Readers,

I am pleased to present the 12th Edition of *Supreme Court Chronicle*, which continues to keep the readers informed and updated regarding the working of the Supreme Court of India.

Within the pages of this edition, you will find engaging content that extends beyond the courtroom, providing insightful coverage on key events including the “Conference on International Arbitration and the Rule of Law” and the “National Annual Stakeholders Consultation on Protecting the Rights of Children Living with Disability and Intersectionality of Disabilities.”

This month’s publication highlights a curated collection of significant judgments, alongside a comprehensive roundup of various events and initiatives undertaken by the Court. One such social-awareness initiative was the screening of *12th Fail* in the Supreme Court Auditorium for the staff and employees, marking the 75th anniversary of the institution.

This edition takes a moment to inform our readers about the medical facilities available to Supreme Court employees under the Central Government Health Scheme (CGHS) and the lawyers through the Delhi Government Health Centre (DGHC). Implementation, promotion, and awareness of such schemes is a proactive step towards streamlining the services that contribute to health and welfare. We hope that all stakeholders will take full benefit of regular health camps and voluntary health drives organised within the premises.

Happy Reading!

Dr Justice D Y Chandrachud
Chief Justice of India

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Fresh from the Bench

Chalasani Udaya Shankar and others v.

M/s Lexus Technologies Pvt. Ltd and others, 2024 INSC 671

NCLT is entitled to exercise power under Section 59 of the Companies Act 2013, where an open-and-shut case of fraud is made out, and the person seeking rectification is the victim

In the judgment dated 9 September 2024, the Division Bench comprising of **Justice Sanjiv Khanna** and **Justice Sanjay Kumar** held that the jurisdiction of the civil court or any other forum would be barred only when the subject matter of the dispute squarely falls within the domain and jurisdiction of the court/forum constituted under the provisions of the Companies Act of 1956/Act of 2013. When and where the Act of 1956/Act of 2013 does not confer such exclusive jurisdiction on the court/forum constituted thereunder or the dispute falls outside the realm of that particular provision of the Act of 1956/Act of 2013, the jurisdiction of the civil court would not be barred entirely. The Court observed that if, on facts, an open-and-shut case of fraud is made out and the person seeking rectification is the victim, the National Company Law Tribunal would be entitled to exercise such power

under Section 59 of the Act of 2013. Further, the expression ‘rectification’, under Section 59 of the Act of 2013, connotes something that ought to have been done but, by error, was not done, or what ought not to have been done but was done, requiring correction and thus the phrase ‘sufficient cause’ in Section 59 of the Act of 2013 is to be tested in relation to the statutory mandate thereof, i.e., anything done or omitted to be done in contravention of the Act of 2013 or the Rules framed thereunder. Notably, Section 59 provides the procedure to be followed when the name of a person in the register of members of a company is omitted without any ‘sufficient cause’. The court exemplified that the exercise of power under Section 59 of the Act of 2013 is to be undertaken in right earnest by examining the material, evidence, and facts on record, which the NCLT did not do in the present case.

S Vijikumari v. Mowneshwarachari C, 2024 INSC 732

Protection of Women from Domestic Violence Act, 2005 is a piece of Civil Code which is applicable to every woman in India irrespective of her religious affiliation

In the judgment dated 10 September 2024, the Division Bench comprising of **Justice B V Nagarathna** and **Justice N Kotiswar Singh** held that the Protection of Women from Domestic Violence Act, 2005 is a piece of Civil

Code which is applicable to every woman in India irrespective of her religious affiliation and/or social background for a more effective protection of her rights guaranteed under the Constitution and in order to protect women

victims of domestic violence occurring in a domestic relationship.

The Court laid down that the scope of Section 25(2) of the Act is broad enough to deal with all nature of orders passed under the Act, which may include orders of maintenance, residence, protection, etc. Further, the Court noted that the Magistrate while exercising his discretion under Section 25(2) of the Act has to be satisfied that a “change in the circumstances” has occurred, requiring to pass an order of alteration, modification or revocation which includes a pecuniary change in the income of the respondent or an aggrieved person. Thus,

the phrasing of the provision is wide enough to cover factors like the cost of living, income of the parties, et cetera. Further, a change in the circumstances need not just be of the respondent but also of the aggrieved person.

The Court further noted that an order for alteration, modification or revocation operates prospectively and not retrospectively. Thus, the exercise of jurisdiction under sub-section (2) of Section 25 of the Act cannot be for setting aside of an earlier order merely because the respondent seeks setting aside of that order, particularly when the said order has attained finality by its merger with an appellate order unless a case for its revocation is made out.

***Javedali Maheubmiya Saiyed v.
State of Gujarat & Anr., Writ Petition (Civil) Diary No(s). 41707/2024***
*Transgression by a family member cannot invite action against other members
of the family or their legally constructed residence*

In an order dated 12 September 2024, the bench comprising **Justice Hrishikesh Roy**, **Justice Sudhanshu Dhulia** and **Justice S V N Bhatti** held that in a country where actions of the State are governed by the rule of law, the transgression by a family member cannot invite action against other members of the family or their legally constructed residence. Alleged involvement in crime is no ground for the demolition of a

property. Moreover, the alleged crime has to be proved through due legal process in a Court of law. The Court noted that it cannot be oblivious to demolition threats inconceivable in a nation where the law is supreme. Otherwise, such actions may be seen as running a bulldozer over the laws of the land. Thus the court maintained the status quo of the petitioner’s property in the order.

Rabbu @ Sarvesh v. The State of Madhya Pradesh, 2024 INSC 720
Mitigating factors important to commute death sentence

In the judgment dated September 12, 2024, the bench comprising **Justice B R Gavai**, **Justice Prashant Kumar Mishra** and **Justice K V Viswanathan** commuted the death sentence of the accused under Section 376A and 302 IPC from

death penalty to rigorous imprisonment for 20 years. The question before the Court was whether the present case would fall in the category of ‘rarest of rare case’ so as to confirm the death penalty or the sentence could be commuted. The

Court went into various mitigating factors which included that the appellant comes from a socio-economic backward stratum of the society and lost his mother and brother at the tender age. The appellant and his family members do not

have any criminal background and the appellant was of a tender age of 22 years when the aforesaid incident occurred. Thus the possibility of the appellant, if given the chance of being reformed, cannot be ruled out as per the Court.

Nilay Rai & Ors. v. Bar Council of India, Writ Petition(Civil) No 577 of 2024
Final year law students allowed to give AIBE 2024

In the order dated 20 September 2024, the bench comprising of the Chief Justice of India, **Dr D Y Chandrachud**, **Justice J B Pardiwala** and **Justice Manoj Misra** directed and allowed the students who are qualified to appear in the final semester of the final year examination in their respective law universities to register and appear for AIBE 2024. The direction in rem was given on the petitions filed by final year students of law at Campus Law Centre and Law Centre I, Faculty of Law, University of Delhi

who were aggrieved by a notification dated 3 September 2024 under which final year law students were not allowed to take the All-India Bar Examination 2024. The Court relied on its judgment in the case of Bar Council of India v. Bonnie Foi Law College and Others 2023 INSC 116, wherein the Bench had remarked that a person would be allowed to take the AIBE as long as they could furnish proof of their eligibility to appear for the final semester of final year of their law course.

State of Madhya Pradesh v. Ramji Lal Sharma & Anr., 2024 INSC 747
Claim of juvenility can be made even after judgment is passed

In the judgment dated 23 September 2024, the Division Bench comprising of **Justice B V Nagarathna** and **Justice N Kotiswar Singh** held that an application for claiming juvenility may be made even after the judgment and order of conviction and sentence has been granted against a person which has attained finality. The Court in

the present case acquitted the accused and set aside the order of conviction on his submission of claim of juvenility on the date of commission of offence under Sections 302, 307 and 34 of the Indian Penal Code, 1860, read with Section 3(2) (v) of the Scheduled Castes and the Scheduled Tribes (Prevention of Atrocities) Act, 1989.

Just Rights for Children Alliance & Anr. v. S. Harish & Ors. 2024 INSC 716
Sex education important for reducing sexual crimes

In the judgment dated 23 September 2024, the Division Bench comprising of the **Chief Justice of India**, **Dr D Y Chandrachud** and **Justice J B**

Pardiwala held that Section 15 of the POCSO Act 2012 is in the nature and form of an 'Inchoate Offence' which penalises the mere storage

or possession of any pornographic material involving a child when done with a specific intent, without requiring any actual transmission, dissemination etc. The Court clarified that subsection(s) (1), (2) and (3) of Section 15 constitute independent and distinct offences and the three offences cannot coexist simultaneously in the same set of facts because, the underlying distinction lies in the varying degree of culpable mens rea that is required under each of the three provisions. The Court also placed prominence on the use of section 67B of the IT Act designed to address and penalise the various electronic forms of exploitation and abuse of children online and thus the same should be interpreted in a purposive manner that suppresses the mischief and advances the remedy to ensure the legislative intent of penalising cyber-offences related to children.

The Court also laid down suggestions for the Union Government that the term “child sexual exploitative and abuse material” (CSEAM) shall be preferred to be used instead of the term “child pornography” with a view to reflect more accurately on the reality of such offences. The Court ordered the State for the implementation of positive age-appropriate sex education programs, followed by providing support services to the victims and rehabilitation programs for the offenders, raising awareness about the realities of child sexual exploitative material and its consequences through public campaigns, identifying at-risk individuals early and implementing intervention strategies for youth with problematic sexual behaviours (PSB), formulating an expert committee at Central level tasked with devising a comprehensive mechanism for health, sex education, *et cetera*.

***The National Commission for Protection of Children Rights v.
State of Jharkhand & Ors., Writ Petition (Civil) No. 222/2020***

*Statutory body cannot invoke Article 32 to seek directions in aid
of discharging its functions under the statute*

In the order dated 24 September 2024, the Division Bench comprising of **Justice B V Nagarathna** and **Justice N Kotiswar Singh** dismissed the petition of NCPCR which took suo moto cognizance of a newspaper report dated 04.07.2018 alleging an instance of illegal child trade connected to an NGO in the State of Jharkhand and seeking a writ in the nature of Mandamus by the Supreme Court directing a Supreme Court monitored time bound investigation of all such organisations “in the State of Jharkhand to ensure protection of children.” The Court noted that it is strange for a statutory body, such as the petitioner,

in the instant case is invoking Article 32 of the Constitution for seeking the aforesaid reliefs as Article 32 is meant for citizens to enforce their fundamental rights, the said Article cannot be the basis to file a Writ Petition by statutory authorities against a State/Union Territory for seeking directions in aid of discharging its functions under the statute. The Court found the reliefs to be vague and ominous and therefore liable to be dismissed but at the same time recognised the power of the NCPCR to take steps for the protection of children in accordance with law.

Conference on International Arbitration and the Rule of Law

Inaugural Session



Left to right: Justice Indu Malhotra, former Judge, Supreme Court of India and Member, Permanent Court of Arbitration (PCA); Ms Anna Joubin-Bret, UNCITRAL Secretary, Justice Sanjiv Khanna, Judge, Supreme Court of India, Chief Justice of India, Dr D Y Chandrachud, Dr Marcin Czepelak, PCA Secretary-General, Mr R Venkataramani, Attorney General of India and Mr Kapil Sibal, President of the Supreme Court Bar Association at the inaugural session of the “Conference on International Arbitration and the Rule of Law,” on 13 September 2024. The Conference was also attended by the other Judges of the Supreme Court of India including Justice Ahsanuddin Amanullah

The Supreme Court of India and the Permanent Court of Arbitration (PCA) hosted a conference on “International Arbitration and the Rule of Law” at the Supreme Court of India from 13 to 15 September, 2024. Organised in collaboration with the United Nations Commission on International Trade Law (UNCITRAL), the event marked a pivotal moment for both institutions. It celebrated two significant milestones: the 75th anniversary of the

Supreme Court of India and the 125th anniversary of the PCA.

The inaugural session focused on the evolving role of international arbitration in upholding the rule of law and its importance for economic growth and foreign investment. Justice Indu Malhotra highlighted India’s history with the PCA and key arbitration cases including the

Kishenganga Arbitration (India-Pakistan), Bay of Bengal Maritime Boundary Arbitration (India-Bangladesh), and the Italian Marines case (India-Italy). Mr Sibal emphasised the role of arbitration in India's economic goals and called for reforms to address challenges such as delays. UNCITRAL Secretary Ms Anna Joubin-Bret commended India's contributions to international arbitration, and Attorney General R Venkataramani stressed the need for global cooperation in arbitration. Justice Sanjiv Khanna discussed fairness in judicial processes, and PCA Secretary-General Dr Marcin Czepelak praised India's efforts to establish a permanent PCA office in New Delhi.

The session concluded with an address by the Chief Justice of India, Dr D Y Chandrachud, who reflected on the collaborative efforts between the Supreme Court of India and the PCA in promoting arbitration and the rule of law. The Chief Justice discussed India's increasing prominence in international arbitration and the need for diversity in arbitral appointments. Acknowledging landmark legal developments, he praised efforts to clarify arbitration law and urged continued reforms, particularly in the Arbitration and Conciliation Act of 1996. The Chief Justice also paid tribute to the late Mr Fali S Nariman, whose contributions to arbitration have had a lasting impact on India's legal landscape.

Working Sessions : Day 1

Session 1: Investor-State Arbitration-Are we closer to a Solution?

The first session discussion centred on the ongoing challenges and potential reforms of the Investor-State Dispute Settlement (ISDS) system, which allows foreign investors to bring claims against host states through international

arbitration. This mechanism raises concerns regarding its impact on state sovereignty and public policy. The panellists debated whether the ISDS system effectively strikes a balance between protecting investors' rights and safeguarding the public interest. Key topics included recent treaty reforms and the role of



Left to right: Professor Michael Waibel, Faculty of Law, University of Vienna; Ms Andrea Menaker, Partner at White & Case; Chief Justice of India, Dr D Y Chandrachud; Mr George Pothan Poothicote, Advocate and Member of UNCITRAL-CLOUT Steering Committee; Mr Toby Landau KC, Barrister and Arbitrator at Duxton Hill Chambers; and Dr Tulio Di Giacomo Toledo, Senior Legal Counsel and PCA Representative in Singapore at the "Conference on International Arbitration and the Rule of Law," on 14 September 2024

mediation and alternative dispute resolution mechanisms that could enhance the fairness and efficiency of investor-state arbitration. Throughout the session, there was a strong emphasis on the need for reform, with diverse perspectives on addressing the polarising nature of investor-state disputes. Chief Justice of India, Dr D Y Chandrachud highlighted the potential of new institutions like the Multilateral Investment Court (MIC) and stressed the importance of alternative mechanisms such as mediation, conciliation, and even the innovative idea of a floating court.

Session 2: State Arbitration: Looking Back and Now

The second session focused on the PCA's various mechanisms for resolving disputes beyond arbitration, including mediation and conciliation. The panel highlighted how investor-state arbitration emerged in the post-1970s context,

characterised by the absence of diplomatic protection and limited state involvement. In contrast, state-to-state arbitration was presented as a potential solution to the inconsistencies and high costs associated with investor-state arbitration. The discussion included a review of the historical development of state-state arbitration, analysing key cases and lessons learned. The speakers examined how this form of arbitration differs from investor-state arbitration and its current relevance in international trade and investment. Additionally, the challenges of addressing political and diplomatic sensitivities in disputes between sovereign states were also a focal point of the conversation.

Session 3: Commercial Arbitration: Pressing Cross-border Issues

The third session primarily focused on the increasingly complex relationship between international commercial arbitration and the



Left to right: Professor Jan Paulsson, Judge on the Court of Cession in Bahrain, Dr Marcin Czepelak, Secretary-General of the Permanent Court of Arbitration; Justice Manoj Misra, Judge, Supreme Court of India, Mr Promod Nair, Senior Advocate and UNCITRAL-CLOUT National Correspondent; Mr Rod Bundy, Partner at Squire Patton Boggs; and Mr Sean Aughey, Barrister at Essex Court Chambers at the "Conference on International Arbitration and the Rule of Law," on 14 September 2024

75 years of the establishment of the Supreme Court of India
and
125th anniversary of the Permanent Court of Arbitration
Conference on
International Arbitration and the Rule of Law
Saturday | 14 September 2024
Session 3
Commercial Arbitration : Pressing Cross-Border Issues



Left to right: Ms Niuscha Bassiri, Partner at ArbBoutique; Mr Cavinder Bull SC, CEO of Drew and Napier LLC; Justice Ahsanuddin Amanullah, Judge, Supreme Court of India; Ms Manisha Singh, Advocate and UNCITRAL-CLOUT National Correspondent; and Mr Salim Moollan KC, former Chair of UNCITRAL and Barrister at Brick Court Chambers at the “Conference on International Arbitration and the Rule of Law,” on 14 September 2024

courts of the seat of arbitration, exploring how this relationship impacts arbitration proceedings and the enforcement of arbitral awards. The panellists emphasised the importance of settlement facilitation in international arbitration, advocating for mechanisms that promote amicable resolutions before disputes escalate into formal arbitration. Another significant topic was India's position in the global arbitration landscape. The panellists reviewed the current legal framework governing arbitration in India, highlighting recent amendments and reforms aimed at enhancing the efficiency and credibility of the arbitration process. Overall, the session provided valuable insights into pressing cross-border issues in commercial arbitration, underlining the necessity for ongoing dialogue and reform to address the evolving challenges in this field.

Session 4: India's Arbitration Chronicle

In the fourth session, panellists discussed significant developments in India's arbitration law, reflecting on both historical milestones and recent trends shaping the landscape. A key focus was the influence of judicial decisions on arbitration and their broader implications for dispute resolution. The Judges emphasised the importance of courts in supporting arbitration while ensuring oversight to prevent misuse. The panel stressed the need to balance promoting arbitration as a preferred dispute resolution method with safeguards against potential issues. Ongoing challenges such as delays, excessive court intervention, and difficulties in enforcing foreign arbitral awards were highlighted, along with the necessity for reforms to improve arbitration



Left to right: Justice Yashwant Varma, High Court of Delhi; Justice Girish S Kulkarni, High Court of Bombay; Justice Sunita Agarwal, Chief Justice, High Court of Gujarat; Justice A Muhamed Mustaque, Chief Justice, High Court of Kerala; and Justice Moushumi Bhattacharya, High Court of Telangana at the “Conference on International Arbitration and the Rule of Law,” on 14 September 2024

efficiency in India. The discussion also touched on India’s progress toward becoming a key arbitration hub, with emphasis on developments

like the Arbitration and Conciliation Act of 1996, and explored future reforms needed to enhance India’s international standing in arbitration.

Working Sessions : Day 2

Session 1: Examining Key Investment Treaty Provisions: An Overview of Core Concepts

The panellists of the first session of Day 2 of the conference engaged in an in-depth discussion

covering various aspects of investment treaties. They explored the historical context of these treaties and provided fundamental definitions, focusing on key concepts such as the definition



Left to right: Ms Jo Delaney, Partner at HFW; Dr Alejandro A Escobar, Partner at Baker Botts; Justice Hrishikesh Roy Judge, Supreme Court of India; Mr Dan Tan, Partner at Dan Tan Law and a faculty member at Stanford Law School and Harvard Law School; and Professor Joongi Kim from Yonsei Law School at the “Conference on International Arbitration and the Rule of Law,” on 15 September 2024

of “investment” and the evolution of Fair and Equitable Treatment (FET) standards. Additionally, the panel addressed significant issues related to expropriation and examined Most-Favoured-Nation (MFN) clauses, as well as recent developments in treaty provisions. The session offered valuable insights into the complexities and nuances of modern investment treaties, equipping participants with a comprehensive understanding of the topic.

Session 2: Navigation ISDS: Critical Steps in the Proceedings

The second session explored the complexities of Investor-State Dispute Settlement (ISDS), with

panellists discussing its unique characteristics, such as the lack of hierarchy, absence of binding precedent, and challenges with inconsistent interpretations. The discussion also highlighted mediation as a viable alternative to arbitration in resolving disputes. Panellists examined the procedural difficulties related to the appointment of arbitral tribunals, offering suggestions for overcoming these challenges. The session concluded with calls for capacity building, particularly for developing nations, and the need for uniform rules to bring greater coherence to the ISDS process, offering participants a deeper understanding of critical steps and procedural aspects in investment arbitration.



Left to right: Mr Nicholas Peacock, Advocate and Arbitrator at Peacock Arbitration; Professor Jan Paulsson, Judge at the Court of Cession in Bahrain; Justice K V Viswanathan, Judge, Supreme Court of India; Mr V K Rajah, Senior Advocate and Former Attorney General of Singapore; and Ms Sandra Mae Magalang, Assistant Legal Counsel at the PCA at the “Conference on International Arbitration and the Rule of Law,” on 15 September 2024



Left to right: Mr Paul Tan, Partner at Gibson Dunn; Mr Jeffrey Sullivan KC, Partner at Debevoise & Plimpton LLP; Justice Bela M Trivedi, Judge, Supreme Court of India; Mr Mark McNeill, Partner at Quinn Emanuel Urquhart & Sullivan LLP; and Mr Toby Landau KC, Barrister and Arbitrator at Duxton Hill Chambers at the “Conference on International Arbitration and the Rule of Law,” on 15 September 2024

Session 3: Exploring the Post-Award Stage - Enforcement and Set-Aside Proceedings

The third session focused on the critical post-award phase in arbitration, analysing both ICSID (International Centre for Settlement of Investment Disputes) and non-ICSID arbitral awards. The panel examined key differences in enforcement mechanisms, noting that ICSID awards are directly enforceable without review, whereas non-ICSID awards often face more significant enforcement challenges under the New York Convention. The discussion also covered the EU’s evolving

stance on ISDS, with a shift toward favouring a multilateral investment court over traditional ISDS frameworks. Additionally, the session addressed set-aside proceedings, exploring how national courts handle applications to annul arbitral awards and recent trends in post-award challenges, particularly in cases involving state actors and enforcing awards against sovereign states. The session concluded with considerations for reforming enforcement mechanisms in new generation bilateral investment treaties (BITs) to create a more efficient and predictable arbitration framework.

Valedictory Session

The valedictory session was a fitting conclusion to the conference that marked the 75th anniversary of the Supreme Court of India and the 125th anniversary of the Permanent Court of Arbitration

(PCA). The session was dedicated to the memory of Mr Fali S Nariman, who contributed immensely to the discourse on arbitration in India, and in building a strong relationship between the



Left to right: Mr Gourab Banerji, Senior Advocate and UNCITRAL-CLOUT National Correspondent; Mr Tushar Mehta, Solicitor General of India; Justice Surya Kant, Judge, Supreme Court of India; Dr Tulio Di Giacomo Toledo, Senior Legal Counsel and PCA Representative from Singapore; and Mr Dammu Ravi, Secretary of External Affairs, Government of India at the valedictory session of the “Conference on International Arbitration and the Rule of Law,” on 15 September 2024

Supreme Court and the PCA. The purpose of the conference was to encourage dialogue between the judiciary, legal professionals, government officials, and arbitration institutions.

Dr Tulio Di Giacomo Toledo emphasised the renewed importance of international arbitration, acknowledging its progress while addressing challenges such as provisional measures and the evolving role of city courts, and he called for reforms in the investor-state dispute system to promote mediation and settlements. Mr Gourab Banerji reflected on the conference as a valuable learning experience, praising Mr Nariman’s influence in shaping arbitration in India and stressing the need for homegrown solutions and judicial oversight to enhance its credibility. Additionally, Mr Dammu Ravi and Mr Tushar Mehta both discussed India’s advancements in

International Arbitration, particularly with the establishment of a PCA office.

Justice Surya Kant, in his address, focused on the roles of the Supreme Court and the PCA in promoting international arbitration. Expressing gratitude to all those who contributed to the conference, he emphasised the need for collaboration and capacity-building within India’s legal system to enhance its arbitration framework. Justice Kant praised the PCA’s work in creating trust within the international community and shared his belief that India is on its way to becoming a global hub for arbitration. The address concluded on a hopeful note, encouraging all stakeholders to continue their efforts in improving arbitration in India to make it a preferred destination for international dispute resolution.

‘12th Fail’ special screening held at Supreme Court of India

The film, *12th Fail* was screened at the C Block Auditorium in the Supreme Court of India’s Administrative Buildings Complex on 25 September 2024. This screening was part of the Supreme Court’s 75th anniversary celebrations. The screening was a star-studded affair, with filmmaker Mr Vidhu Vinod Chopra and actors Mr Vikrant Massey and Ms Medha Shankar in attendance. The screening was followed by an interaction between Chief Justice of India, Dr D Y Chandrachud, the filmmaker, Vidhu Vinod Chopra and the real-life inspirations behind the movie *12th Fail*, Mr Manoj Kumar Sharma and Ms Shradha Joshi.

The film narrates the compelling journey of Manoj Kumar Sharma, an individual who, despite failing his 12th-grade exams, rises through sheer determination and hard work to become an IPS officer. His story, alongside that of Shradha Joshi, an IRS officer, encapsulates the theme of resilience and perseverance. By sharing this narrative, *12th Fail* encourages viewers to see failures as stepping stones rather than endpoints, resonating with anyone who has faced obstacles in their journey. The screening was not just an entertainment event; it was a reminder of the strength of the human spirit in overcoming adversity.



25 September 2024, Chief Justice of India, Dr D Y Chandrachud at the screening of Movie ‘12th Fail’ with filmmaker Mr Vidhu Vinod Chopra; Mr Vikrant Massey, Actor; Ms Medha Shankar, Actor; Mr Manoj Kumar Sharma and Ms Shradha Joshi, the real-life inspirations behind the movie, at Auditorium, C-Block, Administrative Buildings Complex, Supreme Court of India



25 September 2024, Justice J K Maheshwari, Justice Ahsanuddin Amanullah, Justice Rajesh Bindal, Justice P B Varale and Justice R Mahadevan, Judges, Supreme Court of India attend the screening of movie '12th Fail' at Auditorium, C Block, Administrative Buildings Complex, Supreme Court of India

25 September 2024, Justice Hrishikesh Roy, Justice Aravind Kumar, Justice Rajesh Bindal, Justice N Kotiswar Singh and Justice R Mahadevan, Judges, Supreme Court of India attend the screening of movie '12th Fail' at Auditorium, C Block, Administrative Buildings Complex, Supreme Court of India



25 September 2024, Chief Justice of India, Dr D Y Chandrachud with filmmaker Mr Vidhu Vinod Chopra, interact with the audience during the special screening of '12th Fail' at Auditorium, C- Block, Administrative Buildings Complex, Supreme Court of India

National Annual Stakeholders Consultation on Protecting the Rights of Children Living with Disability and Intersectionality of Disabilities

The Juvenile Justice Committee, Supreme Court of India organised the National Annual Stakeholders Consultation on 'Protecting the Rights of Children Living with Disability (focus on CiCL and CNCP) and Intersectionality of Disabilities' at the Auditorium, Administrative Buildings Complex, Supreme Court

of India on 28 and 29 September 2024. It was the ninth round of Consultation and included four technical sessions and various interactions spread over two days. The National Consultation marked the culmination of several State Consultations that took place across the country.

Inaugural Session

The Ninth National Annual Stakeholders Consultation was inaugurated by the Chief Justice of India, Dr D Y Chandrachud. Ms Annpurna Devi, Union Minister for Women and Child Development, delivered the Special Address, and Justice B V Nagarathna, Judge, Supreme Court of India and Chairperson of the Juvenile Justice Committee delivered opening remarks of the Consultation while Ms Cynthia McCaffrey, Representative of UNICEF India introduced the topic at the event.

The Chief Justice of India, Dr D Y Chandrachud delivered the inaugural address at the Conference. The Chief Justice highlighted the need for early identification and intervention for disabilities within families, often hindered by self-denial, lack of knowledge and financial constraints. He shared his personal experiences of fostering two beautiful daughters with disabilities, emphasising the role of schools in mainstreaming these children. 'Gene



28 September 2024, Chief Justice of India, Dr D Y Chandrachud delivers the inaugural address at the "National Annual Stakeholders Consultation on Protecting the Rights of Children Living with Disability and Intersectionality of Disabilities"



Left to right: Ms Cynthia McCaffrey, Country Representative, UNICEF; Ms Annpurna Devi, Union Minister for Women and Child Development; Chief Justice of India, Dr D Y Chandrachud; and Justice B V Nagarathna, Judge, Supreme Court of India release the 'Handbook Concerning Persons with Disabilities' at the "National Annual Stakeholders Consultation on Protecting the Rights of Children Living with Disability and Intersectionality of Disabilities," on 28 September 2024

therapy' as a potential avenue for treatment, and the importance of creating an inclusive environment for disabled individuals, particularly children, were discussed. The need for a more proactive approach to criminal justice for children with disabilities in crime prevention, including post-crime rehabilitation and restorative justice to be served was also discussed.

During the inaugural session, the Chief Justice of India, Dr DY Chandrachud released the *Handbook Concerning Persons with Disabilities* prepared by the Centre for Research and Planning, Supreme Court of India. *The Handbook Concerning Persons with Disabilities* offers guidance to the legal community on the social model of disability, addressing stereotypes and promoting respectful language. It includes a glossary of alternative terms and outlines key disability rights issues. The *Handbook* serves as a resource for fair adjudication within the legal framework.



28 September 2024, Justice B V Nagarathna, Chairperson, Juvenile Justice Committee and Judge, Supreme Court of India delivers the opening address at the "National Annual Stakeholders Consultation on Protecting the Rights of Children Living with Disability and Intersectionality of Disabilities"



Justice B V Nagarathna, Chairperson, Juvenile Justice Committee and Judge, Supreme Court of India conveys her videotaped message at the “National Annual Stakeholders Consultation on Protecting the Rights of Children Living with Disability and Intersectionality of Disabilities”

Justice BV Nagarathna, Chairperson of the Juvenile Justice Committee and Judge, Supreme Court of India, in her opening remarks stressed the need for policies focusing on removing barriers for differently-abled children as removal of these obstacles paves the way for integrating them into mainstream society. Justice Nagarathna observed that children and persons with disabilities have to struggle because of the intersection of their vulnerabilities with barriers in society, and when these are removed, they become part of society with equal access to opportunities. In a world where resources are limited and competing priorities abound, ensuring that policies affecting children living with disabilities are grounded on data and vigorous research is of paramount importance. Justice Nagarathna further added that removing barriers entails ensuring that our schemes and services are inclusive and that they factor in reasonable accommodation.

In her introductory remarks, Ms Cynthia McCaffrey, Country Representative, UNICEF, India stressed the importance of collective accountability in addressing the challenges faced by children with disabilities. She talked about the economic and societal benefits of empowering disabled individuals, particularly through education, and expressed concern over the heightened vulnerability of disabled children to sexual abuse and exploitation, calling for increased focus on their protection. Screening of a documentary was followed by the introductory remarks.

A special address was given by the Union Minister of Women and Child Development, Ms Annpurna Devi. The Minister spoke about the need to expand the definition of child protection and pointed out the particular vulnerability of blind children and emphasised the importance of comprehensive child protection efforts.



28 September 2024, Ms Annpurna Devi, Minister for Women and Child Development, delivers the special address at the “National Annual Stakeholders Consultation on Protecting the Rights of Children Living with Disability and Intersectionality of Disabilities”



28 September 2024, Chief Justice of India, Dr D Y Chandrachud, Justice B V Nagarathna, Justice Dipankar Datta, Justice Sanjay Kumar, Justice Ahsanuddin Amanullah and Justice N Kotiswar Singh, Judges, Supreme Court of India attend the two-day “National Annual Stakeholders Consultation on Protecting the Rights of Children Living with Disability and Intersectionality of Disabilities” at Auditorium, C Block, Administrative Buildings Complex, Supreme Court of India

Technical Session I: Global Instruments, National Legislations, Central and State Schemes and Services

The first session focused on global instruments, national regulations, schemes and the roadmap for the future. Chaired by Justice Harish Tandon, Judge, Calcutta High Court, the session covered the theme of implementation of the UN Convention on Rights of a Child (UNCRC), particularly Article 3, emphasising the best interests of the child. The speakers deliberated upon the general challenges related to accessibility of schemes and stressed on the measures of capacity building and sensitisation of all stakeholders to understand the needs of children with disabilities. Mission Vatsalya scheme, its provisions, its reliance on technology for real-time monitoring of activities

and the importance placed on convergence to provide a holistic support system to children was also discussed. Mr Gopal Mitra, UNICEF Global Lead on Disability and Development in Programme Group gave a presentation on ‘Global Instruments, Human Rights Framework and Global Data on Children with Disabilities’. Justice Anand Pathak, Judge, High Court of Madhya Pradesh, delivered the closing remarks, highlighting the 2021 Amendment to POCSO Act and initiatives like Mission Vatsalya, CiCL, CNCP and child helpline 1098. He further insisted that the issue needs to be viewed from emotional, legal as well as technological dimensions for finding a sustainable way forward.

Technical Session-II: Family Based Alternative Care Services and Social Support for Children with Disabilities

The second session, chaired by Justice Revati Mohite Dere, Judge, Bombay High Court, focused on family-based alternative care services, social support, and the challenges parents face in

providing care for children with disabilities. Justice Dere highlighted the challenges faced by parents, including financial strain and societal stigma. Presentations were given by Ms Alka



Left to right: Dr Sanghamitra Barik, Joint Director, National Institute of Public Cooperation and Child Development; Justice Biren A Vishnu, Judge, High Court of Gujarat; Mr Rahul Bajaj, Advocate; Justice Revati Mohite Dere, Judge, Bombay High Court; Ms Alka Malhotra, Social Behaviour Change Specialist, UNICEF India; and Ms Sara Sunny, Advocate at "National Annual Stakeholders Consultation on Protecting the Rights of Children Living with Disability and Intersectionality of Disabilities," on 28 September 2024

Malhotra, Social Behaviour Change Specialist, UNICEF India and Dr Sanghamitra Barik, Joint Director, National Institute of Public Cooperation and Child Development. The speakers highlighted the importance of child guidance centres in

providing sensitisation and training to individuals working with children with the goal of curating a life of dignity and belongingness for children. The use of manuals and the availability of courses on child guidance and counselling were mentioned. The role of NGOs in addressing issues related to caste and disability was also acknowledged. Mr Rahul Bajaj, Advocate, discussed legal provisions, emphasising that children should not be separated from parents based on disability. He recommended accessibility audits, strengthening disability commissions, and ensuring accessible school infrastructure. Ms Sara Sunny, Advocate, shared her journey as a deaf advocate. She highlighted challenges like discrimination and lack of accessibility, advocating for community support and inclusive education. The closing remarks were given by Justice Biren A Vishnu, Judge, High Court of Gujarat, wherein the importance of awareness campaigns to change societal attitudes and supporting of families was highlighted.

Technical Session-III: Mental & Physical Health and Education: Effective Convergence and Implementation

The third technical session focused on mental and physical health, education, and inclusive services. In her opening remarks, Justice Lisa Gill, Judge, Punjab and Haryana High Court, stressed the need for greater acceptance of children with disabilities, recognising their specific vulnerabilities and the importance of providing proper care and protection. She called for the development of national standard operating protocols and a data-driven approach to improve child protection measures. Dr Shekhar Seshadri, Advisor at SAMVAD, NIMHANS, discussed mental health services, including screening, diagnosis, and assessments with a focus on children in conflict with the law (CiCL) and children in need of care

and protection (CNCP). Ms Merry Barua, Founder Director, Action For Autism, National Centre for Autism spoke about the mental health services including referral services and remedial support. Mr Dipendra Manocha, Director of the Developing Countries Program at the DAISY Consortium and Founder of Saksham, spoke on the role of inclusive education and technology-enabled assistive services for children with disabilities. The session, moderated by Justice Gill, concluded with closing remarks from Justice Rekha Palli, Judge, High Court of Delhi. Justice Palli discussed mental health services to children with disabilities and said that the aim should be to ensure their happiness in every moment of their lives.



Left to right: Ms Merry Barua, Founder Director, Action for Autism; Mr Dipendra Manocha, Director, DAISY Consortium and Founder, Saksham; Justice Lisa Gill, Judge, Punjab and Haryana High Court; Justice Rekha Palli, Judge, High Court of Delhi; and Dr Shekhar Seshadri, Advisor, SAMVAD, NIMHANS during Technical Session 3 of the “National Annual Stakeholders Consultation on Protecting the Rights of Children Living with Disability and Intersectionality of Disabilities,” on 28 September 2024

Technical Session-IV: Intersectionality in Victim-Centric Laws and Convergence of Legal Provisions

The final session addressed the convergence of laws related to child protection and disability, including the Juvenile Justice Act and POCSO Act. Co-chaired by Justices G Narendar, Judge, Andhra Pradesh High Court, and Pavankumar Bhimappa Bajanthri, Judge, Patna High Court, the session examined intersectionality and proposed a “horizontal intersectionality” among laws, emphasising victim compensation, rehabilitation, medical aid and expeditious legal processes. Justice Narendar emphasised the need for an umbrella legislation to unify various services and legal remedies, proposing a single authority to streamline aid for victims without bureaucratic hurdles. Mr Anant Asthana, Advocate, highlighted inconsistencies between the Juvenile Justice Act and modern disability and mental health laws. Dr Maheshwar Singh, Faculty, National Law University, Delhi

shared statistical insights on the prevalence of disabilities among children, particularly in rural areas, and discussed provisions under the Rights of Persons with Disabilities Act and the National Trust Act. Justice Moushumi Bhattacharya, Judge, Telangana High Court explored the convergence of five key legislations, including the POCSO Act and the RPwD Act, identifying areas of overlap in victim compensation, medical examination, legal aid and expeditious case disposal. She shared an innovative acronym to represent the role of judiciary – FRISPA: (F: Fast-tracking, R: Restorative Practices, I: Information, S: Sensitisation, P: Protection, A: Awareness). The session concluded with a call for interdisciplinary collaboration, improved governance and raising societal awareness to effectively protect and support children with disabilities.



Left to right: Mr Anant Asthana, Advocate; Justice Moushumi Bhattacharya, Judge, High Court for the State of Telangana; Justice P B Bajanthri, Judge, Patna High Court; Justice G Narendar, Judge, High Court of Andhra Pradesh; Dr Maheshwar Singh, Professor, NLU Delhi during Technical Session 4 at the “National Annual Stakeholders Consultation on Protecting the Rights of Children Living with Disability and Intersectionality of Disabilities,” on 29 September 2024

Closing Session

The programme concluded with a recap by Ms Soledad Herrero, Chief of Child Protection, UNICEF India, and remarks on the ongoing Central Government initiatives from key government officials.

Justice Nagarathna delivered the closing remarks for the Stakeholder Consultation, emphasising the importance of interdisciplinary knowledge sharing and advocating for an inclusive approach that supports decision-making for children with disabilities. She highlighted that children with disabilities, like all children, have the right to safety, the right to grow up in a family environment, and the right to enjoy and consume media. They have a right to be constructive and accountable citizens in the community. Justice Nagarathna urged the audience to carry this message forward. She further noted that the Chief Justice of India thoughtfully guided the discussion on the need to create an inclusive environment for children with disabilities.

Justice Nagarathna observed that we should make a resolve to reaffirm our commitment for the protection of children, especially children with disabilities and that states should take policy and legal steps to ensure accessibility for children with disabilities, removing barriers to their rights. Each state must adopt an Action Plan, reviewed with the Juvenile Justice Committees of High Courts,



29 September 2024, Justice B V Nagarathna, Chairperson, Juvenile Justice Committee and Judge, Supreme Court of India delivers the closing remarks at the “National Annual Stakeholders Consultation on Protecting the Rights of Children Living with Disability and Intersectionality of Disabilities”

and inform a National Roadmap with time-bound commitments. Data on children in the Juvenile Justice System should be streamlined and monitored based on Supreme Court guidelines. Justice and child protection systems must be more inclusive, ensuring children with disabilities grow in nurturing environments. Justice Nagarathna also insisted that the *“Invisible No More” Mission Statement and Handbook Concerning Persons with Disabilities* should be widely shared and followed in daily practice.

The National Annual Stakeholders Consultation concluded with a strong call for continued collaboration to advance the rights and protections of children with disabilities in India. The key message emphasised that these children deserve equal opportunities, respect, and inclusion in society.



Left to right: Ms Soledad Herrero, Chief of Child Protection, UNICEF; Mr Rajesh Aggarwal (IAS), Secretary, Department of Empowerment of Persons with Disabilities, Government of India; Justice B V Nagarathna, Chairperson, Juvenile Justice Committee and Judge, Supreme Court of India; and Mr Anil Malik (IAS), Secretary, Ministry of Women and Child Development, Government of India on 29 September 2024

Supreme Court Events and Initiatives

Inauguration of the renovated Delhi Government Health Centre (DGHC)



17 September 2024, Chief Justice of India, Dr D Y Chandrachud and Justice Ahsanuddin Amanullah at the inauguration of the renovated Delhi Government Health Centre (DGHC) opposite Post Office, near Gate B, Main Campus, Supreme Court of India



17 September 2024, Chief Justice of India, Dr D Y Chandrachud, Justice P S Narasimha and Mr Kapil Sibal, President, SCBA, attend the inauguration of renovated Delhi Government Health Centre (DGHC) opposite Post Office, near Gate B, Main Campus, Supreme Court of India

Online Mediation Training Web Portal



18 September 2024, Chief Justice of India, Dr D Y Chandrachud with the Judges of the Supreme Court attend the launch of the Online Mediation Training Web-portal in the Judges' Lounge, Main Building

Inauguration of Health Checkup Camp

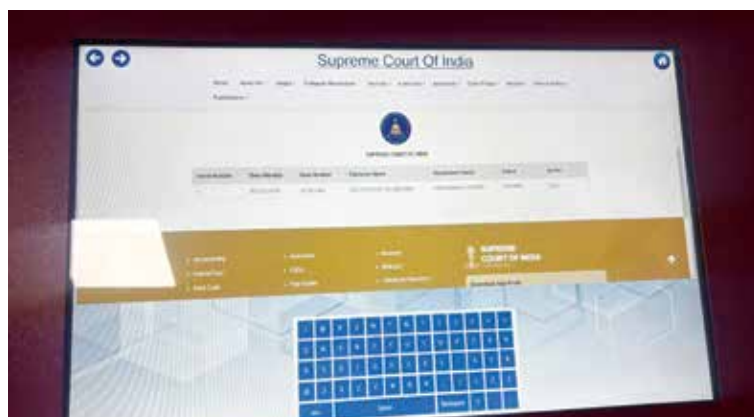


19 September 2024, Chief Justice of India, Dr D Y Chandrachud, Justice Sanjiv Khanna, Justice P S Narasimha, Justice Ahsanuddin Amanullah, along with Mr Kapil Sibal, President, Supreme Court Bar Association (SCBA) attend the inauguration of Health Checkup Camp, set up within the premises of the Supreme Court in collaboration with Rotary Club of Delhi South Central, at Supreme Court Lawns

Kiosks

In a significant step towards enhancing accessibility and convenience, the Computer Cell of the Supreme Court of India has successfully procured 15 interactive kiosks, accessible by all the stakeholders within the premises of the Court. Out of these 15, one is a spare, one will soon be installed near NALSA office in the Administrative Buildings Complex, while the remaining 13 kiosks have been strategically deployed across key locations including two facilitation centres, Registrars' Gallery, and the arch behind Courtrooms 6, 7, and 8. Additionally, two kiosks have been placed at the

filing counter within the Administrative Buildings Complex. Speaking to Supreme Court Chronicle, Registrar (Technology), Mr H S Jaggi mentioned that these kiosks are available in both camera-enabled and non-camera-enabled formats. The camera-enabled kiosks help the users to avail a range of services including applying for a fresh or renewed entry pass via Su-Swagatam, whereas the non-camera-enabled kiosks offers services like access to cause lists, display boards and e-SCR judgments, ensuring a seamless and user-friendly experience for all visitors.



Kiosks deployed at different places in the Supreme Court of India premises

Legal Aid

Glimpse of 3rd National Lok Adalat



14 September 2024, National Legal Services Authority (NALSA) conducts 3rd National Lok Adalat, 2024 across taluks, districts and at the High Court level in 27 States/Union Territories

30 September 2024, Justice Sanjiv Khanna addresses the gathering during the signing of Memorandum of Understanding (MoU) between the Department of Social Justice and Empowerment (DoSJE), Government of India, and the National Legal Services Authority (NALSA) at Dr Ambedkar International Centre, Janpath, New Delhi



Training Hub

2 to 30 September 2024, the Training Cell in collaboration with STEP from The Hindu Group conducts the English Language Course classes for the staff members of the Registry, in seven batches, three days a week



27 September 2024, the Training Cell organises a session for the members of SCAORA on the operation of AED (Automated External Defibrillator) machines installed across the Supreme Court campus, ensuring preparedness for emergency situations. Mr Vikram Singh Choudhary, Senior Nursing Officer, Mr Dragpal and Mr Ashok Kumar, Nursing Officers, AIIMS, New Delhi were resource persons

Mediation and Conciliation Project Committee Training

The Mediation and Conciliation Project Committee (MCPC) of the Supreme Court of India plays a fundamental role in the field of mediation by shaping advocates, judicial officers to be mediators by providing regular mediation training. The MCPC conducted eighteen 40 hours Mediation Training Programmes in the States of Bihar (02), Himachal Pradesh (02), Madhya Pradesh (02), Maharashtra (04), Manipur (03), New Delhi (02), Tamil Nadu (01), Uttarakhand (01) and

West Bengal (01) in the month of September, 2024. The MCPC also conducted 20 hours Refresher Programme, Advanced Course (Capsule Course), Training of Trainers (ToT), Awareness Programme, Referral Judges Training Programme, Advanced Training Skills for Potential Trainers Programme, Course on Developing Advanced Training Skills for Potential Trainers Programme, and 5 Day Intensive Training Programme for Potential Trainers.

Staff Corner



*Dr Shyama Gupta, Chief Medical Officer, CGHS &
In-charge of Supreme Court Medical Centre*

Dr Shyama Gupta has been the Chief Medical Officer of the Central Government Health Scheme (CGHS) Centre at the Supreme Court of India for nineteen years. Being the in-charge of the Centre, Dr Gupta shares her experience with *Supreme Court Chronicle* team, providing an overview of the CGHS facilities during candid and insightful discussion. Having joined the institution in 2005, Dr Gupta has played a pivotal role in the evolution and growth of the medical unit within the Apex Court. When Dr Gupta first joined, the medical centre was only a small dispensary with just three doctors and limited services. The facility did not dispense drugs except for tablets that were provided in case of emergencies.

Since then the facility has gone through a lot of progressive changes, while expanding its services and adding specialities. The facility became a full-fledged Centre which was upgraded and integrated with the latest technologies. One such upgradation is the recent establishment of the radiology department. Dr Gupta mentions that

under the visionary leadership and support of the Chief Justice of India, Dr D Y Chandrachud, the Centre has further been equipped with critical diagnostic tools like X-ray, Orthopantomography, Ultrasound, and Immunoassay Machinery. Today, the CGHS Centre at the Supreme Court provides a wide range of medical services to judges, their families, and court employees, all regards to the Chief Justice's zeal for a sound and healthy workplace. What is more praise worthy is the fact that the emergency services are not just limited to the regular employees but also to visitors alike. These facilities include consultation, investigation, and drug dispensing, ensuring that comprehensive healthcare needs are met within the premises.

A dedicated team of doctors ensures that various specialities are available to cater to diverse medical needs. The facility has a cardiologist, dental surgeon, and medical specialist. Additionally, ophthalmologists, ENT specialists, orthopaedic surgeons, paediatricians, optometrists, dermatologists, and gynaecologists visit two to three times a week. The newly included gastroenterology branch and a radiology department have enhanced the medical offerings. A laboratory, operated by a pathologist, operates six days a week and offers advanced diagnostic services. Physiotherapy is also available with male and female physiotherapists.

In addition to conventional medical care, the CGHS Centre offers alternative medicine options through Ayurvedic and Homoeopathic consultations and drug dispensing. Plans are underway to introduce a Unani medicine facility, further broadening the scope of holistic healthcare available at the Supreme Court.

The emergency medical services at the Supreme Court are a standout feature of the CGHS facility. The Centre operates a 24x7 doctor and staff-run emergency unit that provides first aid and transportation to the hospital when necessary. A state-of-the-art advanced life support ambulance, manned by trained paramedics, is also available around the clock, ensuring that any medical emergency is swiftly and efficiently managed. This expeditious service highlights the Supreme Court's commitment to ensuring timely medical care for its employees.

Preventive healthcare has also been prioritised by organising regular health camps and voluntary health drives. CGHS has also conducted various health camps in collaboration with Maulana Azad Institute of Medical Sciences, Medanta Hospital, Max Super Speciality Hospital, Shalimar Bagh. These camps include oral checkups, pap smears, cardiovascular diagnosis and mammography screenings within the Supreme Court premises.

Dr Gupta describes her role at the Supreme Court Medical Centre beyond that of a typical job. She

refers to the clinic as her “baby,” which she has nurtured and developed over the years. Her long tenure has given her a unique perspective on the changes and transitions within the Supreme Court. Over the years, she has witnessed the oath-taking ceremonies of several Chief Justices, an experience that has deepened her connection to the institution.

While the CGHS Centre offers comprehensive physical healthcare, Dr Gupta acknowledged that there is still room for improvement in mental health services. A proposal for the appointment of a psychiatrist and endocrinologist is currently under consideration, reflecting the ongoing efforts to upgrade the medical facility.

As the CGHS Centre continues to evolve, new initiatives like the introduction of HPV vaccines are also on the horizon, ensuring that the Centre remains at the forefront of healthcare innovation within the Supreme Court. She believes that the current additions to the Centre and the continued efforts of the staff and doctors over the years have made the Centre one of the best in the country.



Medical facilities available at the Central Government Health Scheme Centre at the Supreme Court of India

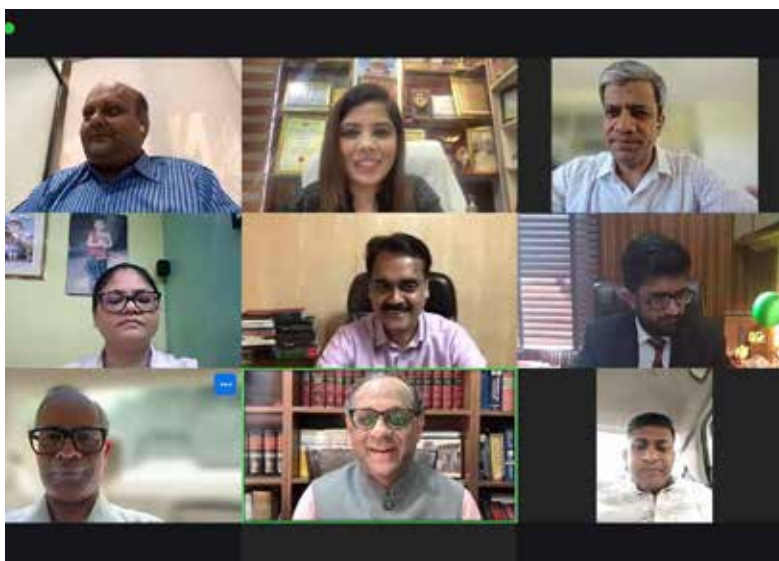
Bar News Bulletin

SCBA Scoop



29 September 2024, Justice Dipankar Datta and Justice Sanjay Karol distribute trophies to the winners and runner-ups in different categories after the completion of 4th Amarendra Sharan Memorial Badminton Tournament 2024, organised by the SCBA, at DDA Squash and Badminton Stadium, New Delhi

SCAORA Scoop



21 September 2024, Additional Solicitor General, Mr N Venkataraman speaks on the 'Legal Validity & Enforceability of E-commerce Contracts in Corporate Transactions' for the interactive webinar as part of the SCAORA Lecture Series 2024

Beyond the Court



1 September 2024, Justice B R Gavai delivers keynote address at the National University of Study and Research in Law (NUSRL), Ranchi, during the “Justice S B Sinha Memorial Lecture,” commemorating the Golden Jubilee of the landmark case ‘Kesavananda Bharati v State of Kerala’

1 September 2024, Justice M M Sundresh and Justice K V Viswanathan at the release of book titled “Comprehensive Commentary on Environmental and Pollution Laws-An Academician’s and Practitioner’s Guide” at Chennai



3 September 2024, Justice Rajesh Bindal at the book launch of “Decoding the Laws” authored by Dr Tzaina Vikrant Bajaj at Indian Society of International Law, VK Krishna Menon Bhawan, Delhi



4 September 2024,
Justice Surya Kant at the book launch of
“Law and Justice in the Age of Artificial
Intelligence” at
O P Jindal University, Sonapat

6 September 2024,
Justice Hrishikesh Roy, Justice M
M Sundresh and Justice Rajesh
Bindal, Judges, Supreme Court of
India attend a wildlife photography
exhibition “ATR Through the Lens.”
The photographs were clicked by
Ms Aarzoo Khurana, Advocate, at
Bikaner House,
New Delhi



8 September 2024,
Justice Surya Kant, Justice P S Narasimha
and Justice Prashant Kumar Mishra at
the “State-Level Conference of Judicial
Officers” on ‘Empowering District
Judiciary: Insights into Criminal and Civil
Laws’ hosted by Chhattisgarh State Judicial
Academy, under the aegis of the High Court
of Chhattisgarh



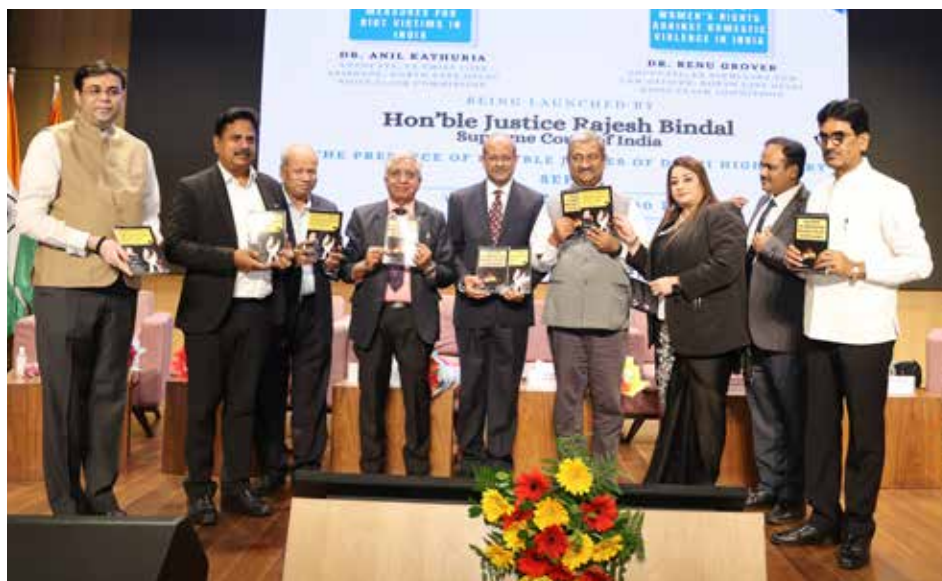
8 September 2024,
Justice P S Narasimha delivers
keynote address at the "State Level
Conference of the Judicial Officers of
Chhattisgarh," Chhattisgarh



8 September 2024,
Justice N Kotiswar Singh,
Chief Guest at
Sharada Shatabdi Samman 2024,
Deendayal Hasthkala Sankul,
Varanasi



10 September 2024,
Justice Rajesh Bindal
attends the book launch of
"Commentary on the Code of
Civil Procedure, 1908 by
B V Vishwanatha Aiyer"
authored by Mr Pawan Reley,
Advocate, at the Main
Auditorium, Indian Society of
International Law, New Delhi



11 September 2024,
Justice Rajesh Bindal attends the book launch of “Evaluation of Compensation Measures for Riot Victims of India” authored by Dr Anil Kumar Kathuria, Advocate, at the Auditorium, Delhi High Court

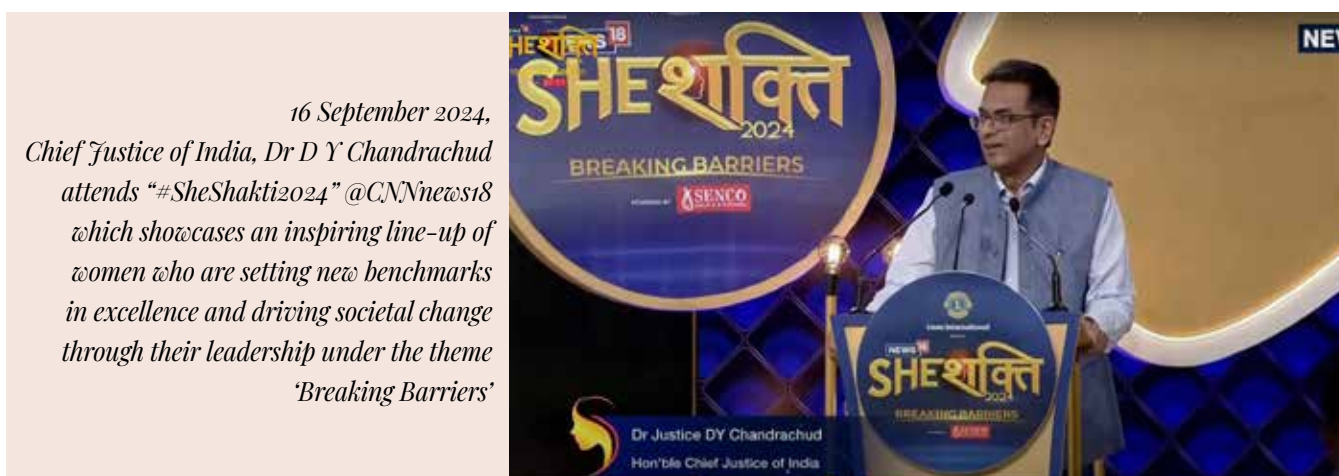
14 September 2024,
Justice B V Nagarathna delivers Convocation Address on the Eleventh Convocation of the National Law University, Delhi



14 September 2024,
Justice B V Nagarathna attends the felicitation function of Justice Ruma Pal, Former Judge, Supreme Court of India, organised by the Income Tax Bar Association, Calcutta on the eve of its Centennial Seminar 2024 at the Portico, Taj Bengal, Kolkata



15 September 2024, Justice B V Nagarathna, delivers keynote address on the topic “Through the Looking Glass: Tax – Planning, Avoidance & Evasion from Westminster to Vodafone and Beyond” in the “Centennial Seminar of the Income Tax Bar Association, Calcutta” organised at the Taj Bengal, Kolkata



16 September 2024, Chief Justice of India, Dr D Y Chandrachud attends “#SheShakti2024” @CNNnews18 which showcases an inspiring line-up of women who are setting new benchmarks in excellence and driving societal change through their leadership under the theme ‘Breaking Barriers’



16 September 2024, Justice Sanjiv Khanna, Chief Guest at Third Convocation Ceremony of Maharashtra National Law University, Aurangabad



On 20 September 2024, Justice B V Nagarathna and Justice Ahsanuddin Amanullah virtually attended the 38th General Council meeting and the 103rd Executive Council Meeting organised by National Law School of India University, Bengaluru (NLSIU). While the 103rd Executive Council Meeting was virtually attended by Justice Pankaj Mithal, Justice Aravind Kumar attended the 38th Meeting of the General Council, NLSIU at Taj Westend, Race Course Road, Bengaluru.

*21 September 2024,
Justice N Kotiswar Singh attends the
National Conference on Commercial
Disputes and National Conference for
High Court Justices on Election Law
at National Judicial Academy (NJA),
Bhopal*



22 September 2024, Chief Justice of India, Dr D Y Chandrachud, Justice Rajesh Bindal, Justice Sandeep Mehta and Justice P B Varale at the 32nd Annual Convocation of the National Law School of India University, Bengaluru (NLSIU)



21-22 September 2024, Justice Ujjal Bhuyan and Justice N Kotiswar Singh at the two-day training programme for police personnel on "Police and Human Rights: Issues and Challenges" organised by ILI & NHRC at Plenary Hall, ILI, New Delhi



23 September 2024, Chief Justice of India, Dr D Y Chandrachud lays Foundation Stone of JSW Academic Block at National Law School of India University, Bengaluru



24 September 2024, Chief Justice of India, Dr D Y Chandrachud, Justice B R Gavai, Justice Abhay S Oka, Justice Dipankar Datta, Justice Ujjal Bhuyan and Justice P B Varale along with Maharashtra Chief Minister, Mr Eknath Shinde during the foundation stone laying ceremony of new proposed site of the Bombay High Court at Bandra Kalanagar, Mumbai



26 September 2024,
Chief Justice of India, Dr D Y Chandrachud delivers a lecture on 'Foresighted Mr M K Nambyar - Constitutional Journeys Beyond Original Intent' at the "M K Nambyar Memorial Lecture," Bharat Mandapam, New Delhi. The same was attended by the Supreme Court Judges including Justice B V Nagarathna and Justice N Kotiswar Singh

26 September 2024,
Chief Justice of India,
Dr D Y Chandrachud,
Justice Vikram Nath and
Justice M M Sundresh, attend
"M K Nambyar Memorial Lecture"
at Bharat Mandapam, New Delhi



26 September 2024,
Justice Pankaj Mithal, Chief Guest, attends "हिंदी पखवाड़ा समापन समारोह" organised by भारतीय भाषा अभियान at Krishna Menon Hall, The Indian Society of International Law, Delhi



28 September 2024, Justice Surya Kant delivers a keynote address at the “Conference on Arbitration: A Catalyst for Sustainable Growth in Infrastructure Development” organised by Indian Council of Arbitration, at the Chandigarh Judicial Academy, Chandigarh

28 September 2024, Justice Surya Kant graces the inaugural session of Legal Convention, 2024 organised by non-profit Organisations Upaay & Unity in Law (ULA) at Chandigarh



28 September 2024, Justice P S Narasimha attends the 21st Annual Convocation of NALSAR University of Law at Hyderabad



*28 September 2024,
Justice Sudhanshu Dhulia,
Judge, Supreme Court of
India, as Chief Guest at the
seminar on “Drugs and its
Influence on Youth” organised
by The Lawyers Cricket
Association (TLCA) under
the aegis of All India Lawyers
Sports Association (AILSAs) at
Rajiv Gandhi International
Cricket Stadium, Dehradun,
Uttarakhand*



*28 September 2024,
Justice Pankaj Mithal, Judge, Supreme
Court of India, Chief Guest at the inaugural
function of e-Library at District Court,
Pali organised by the Bar Association, Pali,
Jodhpur*





*28 September 2024,
Justice Hrishikesh Roy and
Justice Rajesh Bindal preside
over the sessions on 'Writ
Jurisdiction: Scope & Limits,'
'Limits of Writ Jurisdiction', and
'ICT & High Courts – Enabling &
Transforming Digital Democracy'
in the "Orientation Course for
Newly Elevated High Court
Justices" at National Judicial
Academy, Bhopal*



NATIONAL JUDICIAL ACADEMY, BHOPAL



National Seminar on Judicial Skills

Sep. 28th - Sep. 29th 2024



*28 September 2024, Justice Rajesh Bindal, Judge, Supreme Court of India, as resource person at Session 2 on the theme
'Use of Information and Communication Technology (ICT) in Courts' in the "National Seminar on Judicial Skills" in
National Judicial Academy, Bhopal*



28 September 2024, Justice A G Masih, Chief Guest at the VGURK Rastogi Memorial National Negotiation Competition, Vivekananda Global University Campus, Jaipur



28-29 September 2024, Justice Aravind Kumar addresses the gathering during the "National Conference on Breaking Barriers-Building Bridges," organised by All India Federation of Women Lawyers (AIFWL)



29 September 2024, Justice Ahsanuddin Amanullah, Chief Guest, attends the 2nd Prof Christof Heyns India School Moot Court Competition, 2024 hosted by the University School of Law and Legal Studies, GGSIPU, Dwarka, New Delhi

Foreign Events and Conferences



5 September 2024, Ambassadors from Argentina, Netherlands, Lithuania, Columbia, Seychelles, Mongolia, Ecuador, Uzbekistan and Norway, during their visit to the Supreme Court of India. Mr H S Jaggi, Registrar (Technology), gave a brief about the newly established War Room and the e-initiatives taken by the Supreme Court of India



5 September 2024, Ambassadors from Argentina, Netherlands, Lithuania, Columbia, Seychelles, Mongolia, Ecuador, Uzbekistan and Norway with Dr Uma Narayan, Registrar (Library, Editorial & Research), and Dr Sukhda Pritam, Director-cum-Additional Registrar(Centre for Research and Planning), during their visit to Supreme Court Judges' Library



8-12 September 2024, Justice Aravind Kumar addresses the audience during the Annual Conference 2024 of the Commonwealth Magistrates' and Judges' Association (CMJA) on the theme 'Environmental Justice' held in Kigali, Rwanda



17 to 21 September 2024, Justice Prashant Kumar Mishra and Justice A G Masih participate in the Board of Members' Meeting and the 6th Congress of the Association of Asian Constitutional Courts and Equivalent Institutions (AACC) organised under the theme "The Constitutional Courts and Equivalent Institutions in Strengthening Constitutional Justice for Sustainable Society" by the Constitutional Court of the Kingdom of Thailand at Bangkok, Thailand



30 September to 3 October 2024, Mr Mahesh Tanajirao Patankar, Registrar (Court and Building) and Ms Aparna Ajitsaria, Registrar (Admn-I & III) (Human Resources) gave presentation during the 12th Summer School on "The use of Information Technologies and Artificial Intelligence in the Higher Judiciary" organised by Center for Training and Human Resources Development, AACC at Turkey



Glimpses of the Conference on International Arbitration and the Rule of Law







Glimpses of National Annual Stakeholders Consultation on Protecting the Rights of Children Living with Disability & Intersectionality of Disabilities







National Annual Stakeholders Consultation on 'Protecting the Rights of Children Living with Disability (focus on CiCL and CNCP) and Intersectionality of Disabilities'

September 28 – 29, 2024



Supreme Court of India
Tilak Marg, New Delhi-110001

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